



Road Traffic (Disqualification) Act 1970

1970 CHAPTER 23

An Act to amend the law relating to disqualification for the offence of driving while disqualified.

[15th May 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Driving while disqualified to involve discretionary disqualification only.
1962 c. 59.

1.—(1) In Schedule 1 to the Road Traffic Act 1962 (Part I of which lists offences involving obligatory disqualification and Part II of which lists offences involving discretionary disqualification) paragraph 6 shall be omitted from Part I and shall be inserted in Part II after paragraph 22 and renumbered paragraph 22A.

(2) Accordingly in section 5(5) of that Act (additional obligatory disqualification for certain offences) the words “or on a conviction of an offence under paragraph (b) of section one hundred and ten of the principal Act (driving while disqualified)” shall cease to have effect.

Transitional provisions.

1960 c. 16.

2.—(1) Any person who by an order of a court made before the commencement of this Act is, in pursuance of section 5(5) of the Road Traffic Act 1962, disqualified for an additional period in consequence of a conviction of an offence under section 110(b) of the Road Traffic Act 1960 may apply for the removal of the disqualification to the court by which the order was made or, if there are in force two or more such orders disqualifying him for an additional period, he may apply for the removal of the disqualifications to the court which made the last of the orders to expire; and on any such application the court may, as it thinks proper, either by order remove the disqualification or all or any of the disqualifications as from such date as may be specified in the order or refuse the application.

(2) If under this section a court orders a disqualification to be removed, the court shall cause particulars of the order to be endorsed on the licence, if any, previously held by the applicant, and the court shall, in any case, have power to order the applicant to pay the whole or any part of the costs of the application.

(3) In this section—

“disqualified” means disqualified for holding or obtaining a licence and “disqualification” shall be construed accordingly;

“licence” means a licence to drive a motor vehicle granted under Part II of the Road Traffic Act 1960.

1960 c. 16.

(4) The rights and powers conferred by this section shall be in addition to, and not in derogation from, those conferred by section 106 of the said Act of 1960 (under which applications for the removal of disqualifications may be made after a specified period).

3.—(1) This Act may be cited as the Road Traffic (Dis- Short title, qualification) Act 1970. commencement and extent.

(2) This Act shall come into force on the expiration of the period of two months beginning with the date of its passing.

(3) This Act does not extend to Northern Ireland.